

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

OLENA KATS,

Petitioner

VS.

ARTSIOM KHATKEVICH,

Respondent

) Case Number: FDV-25-818347

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Olena Kats and Respondent Artsiom Khatkevich previously had a dating relationship. They are not married and do not have any minor children in common.
- 2) Following a long-cause hearing on 9/30/2025 and 12/2/2025, Judge Gold adjudicated the parties' mutual requests for Domestic Violence Restraining Order (Petitioner filed her request for DVRO on 4/21/2025 and Respondent filed his request for DVRO on 7/8/2025). Judge Gold denied Respondent's request for a DVRO and granted Petitioner a one-year Restraining Order After Hearing (filed 1/6/2026; expires 12/2/2026).
- 3) Now on for hearing is Petitioner's Request for Order filed 3/3/2026 asking the Court to award her \$12,014.42 in attorney's fees and costs under Family Code section 6344. Petitioner attached to her Request for Order a declaration by attorney Ana Voloshko (who Petitioner retained after she had filed her Request for DVRO and who represented Petitioner at the long-cause hearing). Petitioner also attached invoices from her attorney Ana Voloshko for tasks performed between 5/16/2025 and 12/2/2025.

- 1 4) On 4/7/2026, Respondent filed a Responsive Declaration asking the Court to deny Petitioner's
2 requested orders. Respondent claims that Petitioner's Income and Expense Declaration conceals
3 her true income, expenses, and assets. Respondent also argues that Petitioner is not a true
4 prevailing party because the Court denied her request to include additional third parties as
5 protected parties, to order Respondent to attend a 52-week batterer intervention program, and her
6 request for a 5-year restraining order (limiting the restraining order to 12 months). Moreover,
7 Respondent states that he prevailed regarding his request that Petitioner be ordered to return a
8 mobile phone number to Respondent. Respondent also argues that attorney Ana Voloshko is
9 unprofessional, caused delays in the case, and her invoices contain misrepresentations (for
10 instance, there are line items for discussions with opposing counsel, when Respondent has not
11 been represented by an attorney in this matter) as well as work performed by "KK" "OP" and
12 "KS" without explanation regarding who these individuals are. Finally, Respondent argues he has
13 no ability to pay attorney's fees and costs and that his business revenue has taken a hit due to
14 Petitioner's "defamation." Respondent attached as pg. 233 of his Responsive Declaration an
15 Income and Expense Declaration stating that he earns on average \$3,800 per month in net self-
16 employment income, pays \$3,697 per month in expenses, and has \$0 in assets and debts.
17 Respondent attached a 2025 Schedule C to his Responsive Declaration which shows gross
18 income of \$49,135 and expenses of \$15,237.
- 19 5) On 4/14/2026, Petitioner filed a Reply Declaration. Petitioner contends Respondent is
20 misrepresenting his current earnings. Petitioner states the attorney's fees incurred are reasonable
21 in light of multiple hearings and trial preparation and the fact that her attorney billed her at a
22 below-market rate.
- 23 6) At the prior 4/23/2026 hearing, both parties appeared. Respondent testified that when he was
24 dating Petitioner a few years ago, his income was higher, but his income decreased after
25 Petitioner disconnected his phone line and "nobody" knew his new number. The Court continued
26 the hearing to 6/25/2026 to permit the parties to submit further briefing.
- 27 7) On 6/5/2026, Petitioner filed a Supplemental Declaration. Petitioner states that Respondent has
28 operated a business providing electrical services and home improvement / repair since 2005.
29 Petitioner states Respondent also operates a business which provides car detailing. Petitioner

1 states Respondent's electrical business has 152 Yelp reviews and 357 Google reviews. Petitioner
2 states Respondent's car detailing business has 58 Google reviews. Petitioner attached screenshots
3 of various reviews which show that Respondent charges \$1 - \$200 per job. Petitioner also states
4 that information found on various websites, including Respondent's own Yelp page, show that
5 Respondent has a team of employees, which means that he must be earning significant amounts.
6 Petitioner estimates that if Respondent himself performed 1 job per day for 22 days at a rate of
7 \$400 per day, that would equal \$8,800 in monthly income. Petitioner estimates that a team of
8 employees could perform 2 – 4 jobs per day and earn \$15,000 - \$35,000 per month. Petitioner
9 states Respondent's publicly available online activity show that he took two trips to Turkey in
10 2025 and has also traveled to Hawaii and Mexico. Petitioner further states that she served
11 discovery requests on Respondent on 5/22/2026 and Respondent has not replied.

12 8) Per the Proof of Service filed 6/12/2026, Petitioner's Supplemental Declaration was mailed to the
13 address the Court has on file for Respondent on 6/8/2026.

14 9) Respondent did not file an additional declaration.

15 **B. Findings and Order**

16 1) Family Code section 6344 states: "(a) After notice and a hearing, a court, upon request, shall
17 issue an order for the payment of attorney's fees and costs for a prevailing petitioner... (c) Before
18 a court awards attorney's fees and costs pursuant to this section, the court shall first determine
19 pursuant to Section 270 that the party ordered to pay has, or is reasonably likely to have, the
20 ability to pay."

21 2) The Court finds that Petitioner is the prevailing party with respect to her Request for DVRO.

22 3) The Court finds that whether Petitioner has the ability to pay her own attorney's fees and costs is
23 irrelevant.

24 4) The Court finds that Respondent has the ability to pay Petitioner the \$12,000 requested, which the
25 Court also finds is a just and reasonable amount.

26 5) Effective 7/15/2026, Respondent shall pay to Petitioner \$1,000 per month by the 15th of each
27 month for 12 months.

28 6) The Court will prepare the Findings and Order After Hearing.
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